

Courtroom Clerk's session

19. 10:00 AM CASE NUMBER: C23-00155

CASE NAME: ANDRE VS. VAN DERMEER

JURY TRIAL

FILED BY:

TENTATIVE RULING:

Continued to October 26, 2026, 10:00 am, in Department 34, pursuant to Order entered February 25, 2026.

20. 10:00 AM CASE NUMBER: MSC18-01854

CASE NAME: CHIOK VS NUSHAKE ROOFING

JURY TRIAL

FILED BY:

TENTATIVE RULING:

Vacated.

**Law & Motion
Add On**

1. 9:00 AM CASE NUMBER: C22-00793

CASE NAME: NOBLE LEARNING ACADEMY VS. WALNUT CREEK PRESBYTERIAN CHURCH

HEARING ON SUMMARY MOTION BY WALNUT CREEK PRESBYTERIAN CHURCH

FILED BY:

TENTATIVE RULING:

Defendant Walnut Creek Presbyterian Church's renewed Motion for Summary Adjudication is **DENIED**.

I. Background

Noble Learning Academy ("NLA") is a small nonprofit private school run by Cassondra and Mark Hull. Walnut Creek Presbyterian Church ("WCPC") is a nonprofit church that owns a campus in Walnut Creek with classrooms and other facilities.

In early 2021, as NLA was transitioning from online instruction during COVID to in-person schooling, Cassondra contacted WCPC about leasing classroom space on the church campus for the 2021–2022 school year. WCPC, through its finance and operations director Shauna Reed, met with the Hulls on site and discussed available spaces and scheduling around other church uses. After follow-up communications, Reed emailed Cassondra on March 28, 2021 saying, essentially, that the arrangement was "a complete go."

Based on that confirmation, NLA began preparing to operate at WCPC's campus for the coming school year. Those preparations included recruiting students, giving parents tours of the campus, and creating promotional materials listing WCPC's address as the school location. The parties also discussed putting the arrangement into a written lease. From April through June, Reed (and a coworker) repeatedly indicated that WCPC would draft and send a lease soon, and Reed reassured Cassandra not to worry, she was busy, and the lease was coming.

WCPC also told NLA that a Conditional Use Permit ("CUP") would be required for the school to operate at the property, and WCPC represented that it would handle obtaining the CUP from the City and would bring in a consultant to help expedite the process. NLA was not involved in the CUP process beyond assisting with measurements and other requested information, relying on WCPC to complete and submit the application.

In late June 2021, WCPC finally sent a draft lease. Before NLA could sign it, WCPC told the Hulls it would no longer lease the space to NLA. The Hulls claim they later learned that WCPC had been struggling with the CUP process and had not submitted the permit application to the City even as the school year approached.

The lawsuit followed. In the operative Second Amended Complaint ("SAC") plaintiffs asserted causes of action for (1) anticipatory breach of contract, (2) promissory estoppel, (3) intentional misrepresentation (4) negligent misrepresentation (subsequently eliminated by demurrer); (5) breach of contract; and (6) breach of the implied covenant of good faith and fair dealing. WCPC's position in this case is that no contract was formed, that plaintiffs could not reasonably rely on preliminary communications while expecting a formal signed lease, and that no actionable misrepresentations occurred. Plaintiffs take the position that Reed's email and WCPC's months of conduct and assurances induced them to stop searching for alternative locations for the NLA and to instead invest in preparations to use the WCPC space, and that WCPC's reversal and its handling of the CUP process caused them financial harm.

On November 20, 2024, WCPC filed a motion for summary judgment or for summary adjudication of issues. In that motion, WCPC argued that no enforceable contract was formed, that Plaintiffs' reliance on Ms. Reed's statements was unreasonable as a matter of law, and that no actionable misrepresentations were made. WCPC's briefing focused primarily on the absence of a signed lease, deposition testimony purportedly admitting that there was no binding agreement for a lease.

On June 3, 2025, the Court denied WCPC's motion. The Court concluded that material factual disputes existed regarding contract formation and whether Plaintiffs' reliance on certain alleged representations was reasonable.

On July 31, 2025, WCPC filed this renewed motion for summary adjudication of the first, fifth and sixth causes of action arising in contract, and the third cause of action for fraud. WCPC states that its renewed motion "comes down to two issues: (1) does the statute of frauds bars Plaintiffs' breach of contract claim[s]; and (2) did WCPC have a duty to disclose the 'May 9 and CUP facts' for purposes of a fraudulent under the elements of fraudulent concealment?" (11/26/25 Reply Brief; see also, 7/31/25 Notice of Motion.)

On November 18, 2025, Plaintiffs filed an opposition to WCPC's motion on the grounds that the Court had already denied summary adjudication on the same core factual disputes in June 2025, and the

current motion identifies no new facts, circumstances, or law that would justify reconsideration of the June 3 order. Plaintiffs also oppose the motion on the merits, asserting that WCPC's newly asserted arguments as to the sufficiency of their claims continue to depend on disputed facts.

II. Summary Adjudication Standard

The standard governing motions for summary judgment and summary adjudication is settled. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar, supra*, 25 Cal.4th at p. 850.)

III. Judicial Notice

Plaintiffs request judicial notice of the operative Second Amended Complaint and the Court's June 3, 2025 Order denying WCPC's Motion for Summary Judgment. Plaintiffs were not required to formally request judicial notice of documents in the Court's file, but the request is granted. (Evid. Code § 452(d).)

IV. Evidentiary Matters

The Court declines to rule on Plaintiffs Objections to Evidence on the ground that the objections are not material to the ruling on the motion. (Code Civ. Proc., §437c(q).)

WCPC's request to file supplemental evidence in support of the motion is denied. WCPC states the supplemental evidence is necessary to respond to Plaintiffs' evidence offered to show that a lease was formed on March 21, 2021. The proposed supplemental evidence is not relevant to any issue presented on this motion.

V. The Propriety of Renewed Motion

Plaintiffs argue this motion is improper because it targets the same causes of action addressed the prior motion, and WCPC could have raised a statute of limitations defense at that time. WCPC responds that Plaintiffs agreed that a renewed motion could be filed during a Case Management Conference before Judge Devine so they have waived any objection.

Code of Civil Procedure section 437c(a)(4) provides that a party cannot bring more than one summary judgment motion without leave of court, but that limitation expressly does not apply to summary adjudication motions. Code of Civil Procedure section 437c(f)(2) states that a party cannot move for summary judgment based on issues asserted in a prior summary adjudication motion that was denied, unless they show newly discovered facts, changed circumstances, or a change in law. Section 437c(f)(2) says nothing about restricting a successive summary adjudication motion itself. It only restricts using a

denied summary adjudication issue as the basis for a later summary judgment motion unless the requirements for reconsideration in are met.

In the prior motion, WCPC sought summary adjudication of the contract claims on the ground that no contract was ever formed, and of the fraud claim on the ground that plaintiffs did not reasonably rely on any representation by Reed amounting to a promise to lease the property.

In the present motion, WCPC seeks summary adjudication of the contract claims on the ground that any oral lease is unenforceable under the statute of frauds, and of the fraud claim on the grounds that WCPC had no duty to disclose the facts underlying the claim, and that plaintiffs cannot establish materiality, justifiable reliance, or damages.

In *Patterson v. Sacramento City Unified School District* (2007) 155 Cal.App.4th 821, 827, the Court of Appeal found that a second motion for summary judgment could be heard because the two motions for summary judgment were not identical and involved different legal theories. A comparison of the arguments and material facts showed that the motion for summary judgment was not simply a "reformatted, condensed, and cosmetically repackaged" version of its first motion. (*Ibid.*, citing *Bagley v. TRW, Inc.* (1999) 73 Cal.App.4th 1092, 1097.)

WCPC seeks summary adjudication of the same causes of action as the prior motion, but on different grounds. The motion is therefore procedurally proper without the need to show newly discovered facts, circumstances, or a change in law. The Court reaches the merits to the extent the issues are properly framed in the motion.

VI. Analysis

A. Enforceability of the Lease Under the Statute of Frauds (Issue Nos. 1-3)

Although WCPC's separate statement frames Issues 1, 2, and 3 solely as a contract formation question, WCPC's notice and memorandum of points and authorities separately assert that the alleged oral lease for the property is unenforceable under the statute of frauds.

WCPC argues the alleged oral lease is unenforceable under Civil Code section 1624(a)(1), which renders invalid agreements "not to be performed within a year from the making thereof." In support, WCPC cites *Wickson v. Monarch Cycle Mfg. Co.* (1900) 128 Cal. 156 for the proposition that an agreement for a lease to commence in the future is void where the period from making to completion exceeds twelve months. In *Wickson*, for example, the court held that an oral lease made on December 28, to commence January 1st for a term of one calendar year, was unenforceable because the period from the date the agreement was made to the date of expiration exceeded twelve months.

Applying that calculation here, the contract was allegedly formed on March 28, 2021 (PMF 5), and according to WCPC's UMF No. 3, NLA's lease was to run through the last Friday of May 2022, a period of approximately fourteen months from formation to completion.

WCPC's math is correct but the problem is it has invoked the wrong statutory provision. Civil Code section 1624(a)(3), and not subdivision (a)(1), is the provision that governs real property lease agreements. Section 1624(a)(3) requires a writing for "an agreement for the leasing for a longer period than one year, or for the sale of real property, or of an interest therein." Unlike subdivision (a)(1), which

measures the period from contract formation to completion, subdivision (a)(3) asks whether the lease term itself is for a period longer than one year. (Civil Code section 1624(a)(3); *Bed, Bath & Beyond of La Jolla, Inc. v. La Jolla Village Square Venture Partners* (1997) 52 Cal. App. 4th 867, 877 [Civ. Code § 1624 (d), concerning agreements to lease real property for a term longer than one year, is a more specific provision than Civ. Code § 1624 (a), concerning agreements in general that cannot be performed within one year from the date of making, and Civ. Code, § 1624(d), controls over Civ. Code, § 1624, subd. (a), where the two provisions conflict].)

WCPC's Fact No. 3 asserts that the alleged lease ran from August 31, 2021 to the last Friday of May 2022, a period of approximately nine months, and well under the one-year threshold of section 1624(a)(3). WCPC does not meet its burden of establishing that the alleged lease agreement is barred by the statute of frauds as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

Summary adjudication of the contract causes of action based on WCPC's statute of frauds defense is therefore denied. The Court does not address whether the evidence might support the part performance exception to the statute of frauds, or an estoppel to assert the defense.

B. Third Cause of Action for Fraudulent Concealment (Issue No. 4)

WCPC seeks summary adjudication of plaintiffs' third cause of action for fraudulent concealment on the ground that plaintiffs were not damaged. WCPC supports this issue with a single undisputed material fact, which is that "Plaintiffs never paid any money to WCPC." (See UMF No. 8, citing to Ex. D, McIntosh Decl., ¶13.) WCPC's framing of the damages issue is incorrect as a matter of law. The fact that plaintiffs never paid rent to WCPC does not establish the absence of damages on the third cause of action. There is a triable issue of fact whether Plaintiffs sustained damages as the result of WCPC's actions. (See Plfs.' Add'l. Fact Nos. 6-74.)

WCPC did present other evidence in support of the motion that was not incorporated into its separate statement. However, "[t]his is the Golden Rule of Summary Adjudication: if it is not set forth in the separate statement, it does not exist." (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337, superseded by statute on other grounds.)

As WCPC's separate statement cites only UMF No. 8, the court declines to address the additional arguments in WCPC's brief regarding the sufficiency of the fraudulent concealment claim, or the competing evidence of the parties.

VII. Disposition

Based on the foregoing, WCPC's motion for summary adjudication of issues is **DENIED**. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
***HEARING ON MOTION IN RE: SEAL PORTIONS OF MOTION TO ENFORCE SETTLEMENT AGREEMENT**